

		Defendant points out in its reply, to the extent it agreed to obtain a second tax opinion, this discussion was in connection with a <i>Letter of Intent dated April 6, 2026</i>, which was never signed or accepted, and not in connection with the subject agreement. (Reply at p. 2; see also ROA 17, Exh. 8.) In sum, the evidence reflects that “unanimous written approval from all beneficiaries of the George Saadian Trust and from Louise Saadian” was not obtained. Because Defendant had no duty to obtain the approval, it could not have breached the contract by not obtaining the same. As such, Plaintiffs have not shown they have a probable validity of prevailing on their real property claim. Thus, the Court grants the motion to expunge the lis pendens recorded on 3/11/26, in the Orange County Clerk-Recorder’s office as document no. 2026000072347, regarding the real property commonly known as 12235 Beach Blvd., Stanton, California 90680, and identified by Assessor’s Parcel numbers: 131-373-37; 131-373-38; 131-373-39. In connection with this motion, Defendant Beach Executive Plaza, LLC is awarded a total of \$12,060 in reasonable attorneys’ fees and costs, jointly and severally, against Plaintiffs Jonah Saadian and Brandon Saadian. (Code Civ. Proc., § 405.38.) The Court declines to rule on Defendant’s evidentiary objections (ROA 22), because they are not material to the disposition of the motion. Defendant shall give notice of the ruling.
5.	2026-1583700 Peter Yun as Representative of Emergency Committee to Save Huntington Beach Baptist Church of Huntington Beach vs. Gateway Seminary	Defendants Gateway Seminary’s, Adam Groza’s and Kevin Carrothers’ motion to expunge the lis pendens recorded by Peter Yun against the property located at 8121 Ellis Ave., Huntington Beach, CA 92646 is granted. (ROA 49.) Pursuant to Code Civ. Proc. §405.30, anyone with an interest in real property may move a court for an order expunging a <i>lis pendens</i>. A court “shall” grant a motion to expunge if either of the following conditions exists: (1) The pleading upon which the lis pendens is based does not contain a real property claim (Code Civ. Proc. §405.31); OR (2) The claimant has not established by a preponderance of the evidence the probable validity of the real property claim (Code Civ. Proc. §405.32). The burden of proof rests with the party responsible for filing the lis pendens. (<i>Amalgamated Bank v. Superior Court</i> (2007) 149 Cal.

App. 4th 1003, 1007; *Shah v. McMahon* (2007) 148 Cal. App. 4th 526, 529.)

Here, Plaintiff fails to meet the burden of proof necessary to sustain the lis pendens.

Specifically, Plaintiff fails to establish the probable validity of his claims.

The only party whom Plaintiff alleges was defrauded is the Church. (Complaint, ¶¶ 10-11.) The only party to whom Defendants allegedly breached a contractual promise to was the Church. (Complaint, ¶¶ 15-16.)

There are no facts in the Complaint that show privity between Plaintiff and Defendants. Because Plaintiff fails to establish privity or allege that he was personally defrauded, Plaintiff lacks standing to sue for fraud or breach of contract. (See *Gantman v. United Pac. Ins. Co.* (1991) 232 Cal. App. 3d 1560, 1566.)

Furthermore, Plaintiff cannot obtain declaratory relief claim as to the validity of a contract he is not a party to nor has any interest in. (See Code Civ. Proc., § 1060.) Plaintiff's request for an injunction is predicated on the first three causes of action and thus lacks merit as well.

In addition, the lis pendens is procedurally defective because Plaintiff failed to comply with Code Civ. Proc., § 405.22 which states among other things that "prior to recordation of the notice, cause a copy of the notice to be mailed, by registered or certified mail, return receipt requested, to all known addresses of the parties to whom the real property claim is adverse and to all owners of record of the real property affected by the real property claim as shown by the latest county assessment roll."

Plaintiff did not serve a copy of the Lis Pendens on Defendant Gateway and did not serve a copy via registered or certified mail, return receipt requested as required on the other defendants. Furthermore, Plaintiff recorded the Lis Pendens before serving any Defendants with a copy of the Lis Pendens. (Ganji Decl., ¶¶ 2-6, Exs. A-C.)

Code Civ. Proc., § 405.23 states that: "Any notice of pendency of action shall be void and invalid as to any adverse party or owner of record unless the requirements of Section 405.22 are met for that party or owner and a proof of service in the form and content specified in Section 1013a has been recorded with the notice of pendency of action." (See *McKnight v. Sup. Ct.* (1985) 170 Cal. App.

		3d 291, 303 (holding that a violation of the technical requirements of former Code Civ. Proc. § 409(d) was a ground justifying expungement); <i>Rey Sanchez Investments v. Sup. Ct.</i> (2016) 244 Cal. App. 4th 259, 263 (holding lis pendens was void and invalid when no proof of service was recorded with lis pendens).) Thus, based on the foregoing reasons, the motion is granted. Defendants' request for attorney fees is denied. Defendants do not state in the Notice whether the sanctions are sought against counsel, Plaintiff or both. "[C]onstitutional principles of due process require a notice of motion to identify the persons against whom monetary sanctions are being sought." (<i>Cromwell v. Cummings</i> (1998) 65 Cal.App.4th Supp. 10, 13 [citing <i>Blumenthal v. Superior Court</i> (1980) 103 Cal.App.3d 317, 320].) The failure to so specify precludes the requested fee order. Defendants shall give notice.
6.	2025-1471111 Kiannasr vs. General Motors LLC	Plaintiff Hassan Kiannasr's motion for attorney fees is granted in part. Plaintiff is awarded \$17,534.00 in attorney fees. Plaintiff moves for \$18,846.50 in attorney fees as the prevailing party under Civil Code section 1794, subdivision (d), following acceptance of Defendant's Code of Civil Procedure section 998 offer. Plaintiff also seeks a 0.3 lodestar enhancement of \$5,653.95. <u>Entitlement to Award</u> Under Civil Code section 1794, subdivision (d), a prevailing buyer may recover attorney fees based on actual time expended and reasonably incurred in prosecuting the action. Plaintiff accepted Defendant's Code of Civil Procedure section 998 offer, under which Defendant agreed to repurchase the subject vehicle for \$98,000 and to pay reasonably incurred attorney fees, costs, and expenses under Civil Code section 1794, subdivision (d), as determined by noticed motion. (Acosta Decl., ¶¶ 33–34.) Defendant does not dispute Plaintiff's entitlement to reasonable attorney fees, but challenges the amount requested. Accordingly, Plaintiff, as the prevailing party, is entitled to recover reasonable attorney fees under Civil Code section 1794, subdivision (d). <u>Standard of Review</u>